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22CV39627

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

TYLER ALLEN LOFALL, Plaintiff, v. COUNTY OF CLACKAMAS [DA] REBECCA PORTLOCK, WEST LINN POLICE DEPARTMENT, CLACKAMAS COUNTY POLICE DEPARTMENT, WEST LINN POLICE DEPARTMENT, OFFICER DANA GUNNERSON, WEST LINN POLICE OFFER CATLIN BLYTH, CLACKAMAS COUNTY POLICE OFFICE #1, CLACKAMAS COUNTY POLICE OFFICER #2, Defendants, THE ESTATE OF JOANNA LEE OZIAN TEAGUE BOND & ZAC BOND Defendants (2), Heirs of Joanna Lee Bozian.	Case No. 22CV39627 **DEFENDANTS WEST LINN POLICE DEPARTMENT, DANA GUNNARSON AND CATLIN BLYTH'S RULE 21 MOTIONS** **CLAIM NOT SUBJECT TO MANDATORY ARBITRATION** **Prayer Amount: Unclear** **Assigned Judge: TBD** **Date of Hearing: TBD** **Filing Fee—Exempt Pursuant to ORS 20.140**

UTCR 5.050(1) AND 5.010 CERTIFICATION

Oral argument is not requested. Pursuant to UTCR 5.010, the undersigned attorney for Defendants West Linn Police Department, Dana Gunnarson and Catlin Blyth certifies that counsel attempted to confer with Plaintiff about these motions. Counsel for Defendants called Plaintiff twice at the number listed in his Amended Complaint leaving him two voicemails and emailed Plaintiff at

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his email address listed in his Amended Complaint. Plaintiff did not respond to either method of correspondence. As a result, intervention by the Court is necessary.

MOTION

Defendants West Linn Police Department, Catlin Blyth ("Officer Blyth") and Dana Gunnarson ("Officer Gunnerson") (collectively "West Linn Defendants") move this Court for an order dismissing Plaintiff's claims pursuant to ORCP 21 A(1)(h). In the alternative, West Linn Defendants move this Court for an order requiring Plaintiff to make his Complaint more definite and certain pursuant to ORCP 21 D. Additionally, in the alternative, West Linn Defendants move this Court for an order striking Plaintiff's requests for punitive damages, treble damages, and attorney's fees from the Amended Complaint pursuant to ORCP 21 E.

In support of this motion, West Linn Defendants rely on the pleadings in the file and this memorandum.

INTRODUCTION

Plaintiff, as a pro se litigant, filed his Complaint on November 18, 2022. Plaintiff's original Complaint totaled 130 pages. Plaintiff filed an Amended Complaint on December 27, 2022. Plaintiff's Amended Complaint is 160 pages in length and purports to bring claims under several unrelated areas of state and federal law, as well as the Uniform Commercial Code.

Plaintiff's Amended Complaint consists of a confusing and rambling collection of virtually incoherent allegations. The majority of Plaintiff's claims seem to pertain to a pending case in Clackamas County filed in Case No. 21CV02575 that apparently involves a dispute over insurance proceeds. Plaintiff's Amended Complaint contains numerous copied excerpts from several irrelevant treatises or formbooks that further complicate his alleged claims. To the extent Plaintiff attempts to state claims against West Linn Defendants, these supposed claims simply amount to purely legal conclusions or indiscernible factual allegations.

Plaintiff's first reference to West Linn Defendants (other than in the captions) appears on page 50, paragraph 118, where Plaintiff alleges a defective conclusory claim involving Officers

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Gunnarson and Blyth. From there, Plaintiff alleges numerous claims against the collective defendants of the case, which fail to properly identify which defendant Plaintiff believes the allegation is attributable to (i.e., "The Defendants wrongfully taking [sic] rights to an Irrevocable claim right…"; "The actions of the Defendants violated the Plaintiffs [sic] constitutional rights…"). (¶¶ 122, 123.)

From that point, Plaintiff seems to allege a number of claims against the Clackamas County District Attorney's Office, while realleging the same claims pertaining to his insurance proceeds dispute laid out in the first 40 (or so) pages of Plaintiff's Amended Complaint.

Plaintiff's allegations against West Linn Defendants seem to reappear at page 79 where Plaintiff asserts a number of confusing and conclusory claims where Plaintiff asserts West Linn Defendants violated the "Fourth, Fifth, Sixth, Eighths [sic], Ninth, and 14th Amendment." (¶ 259.) From that point, Plaintiff attempts to assert his causes of action mostly by simply stating the elements of the cause of action and realleging the entirety of his allegations (i.e., "Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 270" above with the same force and effect as if herein set forth." (¶¶ 278-280.) Throughout Plaintiff's purported causes of action, Plaintiff again vaguely refers to the collective defendants without identifying the individual named defendant Plaintiff believes is responsible for the allegation.

Ultimately, Plaintiff's allegations do not even remotely constitute a "plain and concise statement of the ultimate facts constituting a claim for relief" as required by ORCP 18 A. Nor do these claims state ultimate facts to constitute a claim for relief. As will be discussed in this motion, Plaintiff's Amended Complaint should be dismissed because it completely fails to comply with the Oregon Rules of Civil Procedure, and it fails to state ultimate facts for relief. In the alternative, the Court should require Plaintiff to make his Amended Complaint substantially more definite and certain, as West Linn Defendants cannot ascertain the precise nature of the claims against them amongst the multitude of alleged grievances contained in Plaintiff's 160-page Amended Complaint.

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It is important to note that Plaintiff's 160-page Amended Complaint contains far too many pleading deficiencies and structural errors to list and discuss in their entirety. This motion will highlight and identify a sampling of the errors contained throughout Plaintiff's Amended Complaint. Nonetheless, West Linn Defendants submit that Plaintiff's Amended Complaint should be dismissed in its entirety, or Plaintiff should be required to substantially amend his pleading to make it more definite and certain. In its current form, Plaintiff's Amended Complaint is impossible to defend against because of the confusion created from its improperly pled allegations and claims for relief.

Motion 1: Plaintiff's Amended Complaint should be dismissed for failing to properly attribute claims for relief against a particular named defendant.

Oregon courts have long held that the allegations of a complaint should be clear and unequivocal, so that the defendant may have notice of what is intended to be proved at trial. *Tracy and Baker v. City of Astoria,* 193 Or 118, 131 (1951). The parties in an action have the right to be informed by the pleadings of the basis of the cause of action. *Blake v. Roy Webster Orchards,* 249 Or 348, 352 (1968). "Under ORCP 18A, a pleader is required to state *in what way* the defendant['s]" actions were allegedly unlawful. *Holger v. Irish*, 316 Or 402, 407 (1993) (emphasis in original).

As a threshold matter, Plaintiff asserts nearly all of his allegations against the "defendants" collectively without identifying which named defendant he believes is actually responsible for the alleged actions. Thus, West Linn Defendants cannot ascertain which claims apply to which defendant. Plaintiff's Amended Complaint fails to properly state in what way the individual defendant's conduct was allegedly unlawful.

For example, in an unnumbered section titled "Liability," Plaintiff apparently directs his purported causes of actions in Counts 1, 2, 3, 4, 6, 7, and 8 toward:

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> The two West Linn arresting police officers (Dana Gunnerson [sic] & Catlin Blyth) West Linn Police Depo [sic], Clackamas County Police Depo [sic], County of Clackamas, DA Rebecca Polick [sic]

Page 138.

In Count 6, titled "False Imprisonment" Plaintiff alleges, "as a result of the Defendants actions, Plaintiff was arrested … ." (¶ 360.) This allegation fails to state in what way any individual defendant was responsible for Plaintiff's allegations. West Linn Defendants have no way of knowing the basis for Plaintiff's allegations as they pertain to Officers Gunnarson and Blyth, or the West Linn Police Department. Plaintiff's Amended Complaint completely fails to inform West Linn Defendants of the basis, both legal and factual, for Plaintiff's causes of action. Plaintiff does not state in what way the individual defendants were allegedly responsible for the extremely confusing allegations alleged throughout the Amended Complaint. In summary, Plaintiff's repeated allegations toward the collective defendants fail to provide clear and unequivocal notice of the claims Plaintiff asserts against Officers Gunnarson and Blyth or the West Linn Police Department.

Motion 2: Plaintiff's Amended Complaint should be dismissed for failing to separately state claims and failing to plead with specificity.

On a related issue to Plaintiff's repeated use of the collective defendants throughout his allegations, Plaintiff's Amended Complaint fails to comply with the requirements of the Oregon Rules of Civil Procedure. ORCP 18 A requires "a plain and concise statement of the ultimate facts constituting a claim for relief without unnecessary repetition." Moreover, ORCP 16 B requires that the plain and concise statements be in consecutively numbered Arabic numeral paragraphs limited to a single set of circumstances and "[w]ithin each claim alternative theories of recovery shall be identified as separate counts."

Although Plaintiff is a self-represented litigant, pro se parties are held to the same standards as represented parties. *Charles Schwab & Co., Inc. v. Pletz,* 95 Or App 48, 53 n.4

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(1989); *State v. Palmer,* 35 Or App 125, 128 (1978) ("A [party] appearing pro se must inform himself of and comply with court rules as any other litigant.").

Plaintiff's 160-page Amended Complaint blatantly fails to comply with the requirements of the Oregon Rules of Civil Procedure. Plaintiff's Amended Complaint does not contain a plain and concise statement of the ultimate facts constituting a claim for relief. Plaintiff's pleading amounts to a lengthy and incoherent manifesto interspersed with citations to irrelevant and inapplicable law. While Plaintiff attempted to consecutively number the 510 enumerated paragraphs of his pleading, he repeatedly inserts lengthy provisions and claims without numbering. Moreover, Plaintiff's claims and allegations are completely intertwined. Plaintiff repeatedly oscillates from claims and assertions against the "heirs" involving insurance proceeds to allegations against West Linn, the Clackamas County Circuit Court, and Clackamas County.

In summary, Plaintiff's failure to comply with the pleading rules under Oregon law render his Amended Complaint nearly indiscernible. West Linn Defendants must engage in guesswork and speculation in their attempt to ascertain what Plaintiff alleges. Plaintiff's failure to comprise a pleading that complies with the Oregon Rules of Civil Procedure warrants dismissal of this proceeding.

Motion 3: Plaintiff's Amended Complaint should be dismissed for failing to plead ultimate facts sufficient to state a valid cause of action.

On a motion to dismiss under ORCP 21 A(1)(h) for failure to state ultimate facts sufficient to constitute a claim, the Court must "consider only the facts alleged in the complaint[.]" *Emmet v. O'Brien,* 72 Or App 752, 754 (1985). In doing so, the Court is required to "accept as true the allegations in the complaint, and any reasonable inferences that can be drawn from those allegations, viewing them in the light most favorable to the nonmoving party." *Chong Ok Chang v. Eun Hee Chun,* 305 Or App 144, 147 (2020). However, the Court must "disregard allegations that are conclusions of law." *Tydeman v. Flaherty,* 126 Or App 180, 182 (1994). To survive such a motion to dismiss, the complaint must contain allegations of material fact "as to

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each element of the claim for relief[.]" *McAlpine v. Multnomah County,* 131 Or App 136, 138 (1994). Legal conclusions are not factual allegations, and are therefore insufficient to defeat a motion to dismiss. *See Wathers v. Gossett,* 148 Or App 548, 558 (1997).

In this case, every one of Plaintiff's allegations, purportedly against West Linn Defendants, contain purely legal conclusions that are insufficient to state a claim for relief. For example, in Counts 1 and 2, Plaintiff copied the identical conclusory assertions while merely changing out "detention" and "conspiracy", respectively, in the two allegations. (¶¶ 279, 282.) Likewise, Counts 3 and 4 contain a multitude of conclusory assertions that simply assert the legal "buzzwords" of a civil rights claim. For example, Plaintiff alleges West Linn Defendants "conspire[ed] to violate the rights, privileges, and immunities guaranteed to Plaintiff by the Constitution …" and "Defendants [W]est Linn police officers knew or should have known that plaintiff was innocent." (¶¶ 289, 302.) These conclusory allegations lack any coherent facts sufficient to support a cognizable claim for relief. Counts 6, 7, 8, and 10 and are defective for the same reasons. (*See* ¶¶ 361, 371, 381, 417, 419.) It is again important to note that these examples are just a sampling of the repeated pleading deficiencies in Plaintiff's Amended Complaint. As noted above, Plaintiff's 160-page Amended Complaint contains far too many errors to list and discuss in their entirety.

Motion 4: Plaintiff's Amended Complaint should be dismissed because Plaintiff failed to allege timely and proper tort claim notice to West Linn.

Plaintiff has failed to allege proof of timely notice to West Linn Defendants pursuant to ORS 30.275. As a result, Plaintiff's Complaint fails to state ultimate facts sufficient to constitute a claim against West Linn Defendants.

Under the Oregon Tort Claims Act ("OTCA"), ORS 30.260 *et seq*., timely tort claim notice is a condition precedent to bringing a claim against a public body. ORS 30.275(2). This is a required element of each of plaintiff's tort claims that must be pled in the complaint. *Urban Renewal Agency of City of Coos Bay v. Lackey*, 275 Or 35, 41 (1976) ("The *pleading* and proof

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of notice to satisfy the requirements of ORS 30.275 is a *mandatory requirement* and a *condition precedent* to recovery under the Oregon Tort Claims Act.") (emphasis added). "The requirement that notice be given timely is a substantive condition precedent to recovery under the Oregon Tort Claims Act, that, if not satisfied, deprives a plaintiff of the right to make a claim." *Tyee v. Tyee*, 116 Or App 317, 320 (1992).

In this case, Plaintiff has not alleged, or even discussed, compliance with ORS 30.275 in his Amended Complaint. It is Plaintiff's obligation to plead and prove timely tort claim notice. Here, Plaintiff has failed to do so. As a result, Plaintiff's claims against West Linn Defendants should be dismissed.

Motion 5: In the alternative, Plaintiff should be required to make his claims more definite and certain.

Under ORCP 21 D, when the allegations of a pleading are "so indefinite or uncertain that the precise nature of the charge … is not apparent," the court may require the pleading to be "made definite and certain by amendment." Any vagueness, uncertainty, or ambiguity in the allegations of the complaint should be addressed by a pre-trial motion to make more definite and certain. *Galego v. Knudsen*, 282 Or 155, 159 (1978) (citing former ORS 16.110).

As discussed above, West Linn Defendants are unable to identify specific portions of Plaintiff's Amended Complaint that should be made more definite and certain because the entire 160-page Amended Complaint needs to be more definite and certain. As previously discussed, Plaintiff improperly alleges numerous claims against the collective "defendants" without attributing his claims to the individual named defendants. Plaintiff's allegations repeatedly comingle multiple causes of action, that if properly pled, would only be applicable to certain defendants and not others. As a result, it is impossible for West Linn Defendants to ascertain the specific claims they must defend against.

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Motion 6: In the alternative, and in addition to Motion 5, Plaintiff's requests for punitive damages, treble damages, and attorneys' fees should be stricken.

Plaintiff's causes of actions purportedly against West Linn Defendants contain impermissible requests for relief. In all of Plaintiff's "Counts" directed toward West Linn Defendants (1, 2, 3, 4, 6, 7, 8, 10) Plaintiff requests punitive damages, attorney's fees, and "treble damages." These requested damages are impermissible and frivolous. As a result, the Court should strike these requests from Plaintiff's Amended Complaint.

ORCP 21 E provides: "on motion made by a party ... the court may order stricken: (1) any sham, frivolous, or irrelevant pleading or defense ... [or] (2) any insufficient defense or any sham, frivolous, irrelevant or redundant matter inserted in a pleading."

In general, Plaintiff's request for punitive damages against West Linn Defendants is prohibited by ORS 30.269. Moreover, Plaintiff failed to comply with the punitive damage pleading requirements under ORS 31.725. To the extent that Plaintiff's supposed claims under 42 U.S.C. § 1983 permit the imposition of punitive damages, Plaintiff has completely failed to comply with the pleading standards applicable to Section 1983 punitive damages claims under federal law. *See Dang v. Cross*, 422 F. 3d 800, 807 (9th Cir. 2005). As a result, Plaintiff's request for punitive damages should be stricken.

Plaintiff's request for "treble damages" should be stricken as well. Treble damages are limited to particular classes of claims, none of which are present in this action.

Plaintiff's request for attorney's fees should also be stricken. Plaintiff, as a pro se litigant, is not entitled to an award of attorney's fees under state or federal law. *Parquit Corp. v. Ross*, 273 Or 900, 901 (1975); *Kay v. Ehrler*, 499 U.S. 432, 435 (1991); *Gonzalez v. Kangas*, 814 F. 2d 1411, 1412 (9th Cir. 1987). Thus, this request is plainly impermissible and should be stricken.

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CONCLUSION

For these reasons, West Linn Defendants respectfully request the Court grant its motions to dismiss, or motions in the alternative.

DATED this 17th day of January 2023.

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By: s/ *William E. Stabler*

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CERTIFICATE OF SERVICE

I hereby certify that on the 17th day of January 2023, I served the foregoing **DEFENDANTS WEST LINN POLICE DEPARTMENT, DANA GUNNARSON AND CATLIN BLYTH'S RULE 21 MOTIONS** on the following parties by the method(s) indicated below:

Tyler Allen Lofall tyleralofall@gmail.com 6880 NW 271st Avenue Hillsboro, OR 97124 Plaintiff Pro Se	☒ First-class mail, postage prepaid ☐ Facsimile, pursuant to ORCP 9 F ☐ Hand Delivery ☐ Overnight courier, delivery prepaid ☐ E-mail, pursuant to ORCP 9 G ☒ E-mail copy, as courtesy only
Eliot D. Thompson eliot.thompson@doj.state.or.us Senior Assistant Attorney General Oregon Dept. of Justice 1162 Court Street NE Salem, OR 97301-4096 Attorney for Clackamas County District Attorney Rebecca Portlock	☒ First-class mail, postage prepaid ☐ Facsimile, pursuant to ORCP 9 F ☐ Hand Delivery ☐ Overnight courier, delivery prepaid ☐ E-mail, pursuant to ORCP 9 G ☒ E-mail copy, as courtesy only

Electronic Service, via Odyssey File & Serve, pursuant to UTCR 21.100:

Tyler Allen Lofall
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Plaintiff Pro Se

s/ *William E. Stabler*
William E. Stabler, OSB No. 124624
Of Attorneys for Defendants West Linn Police Department, Dana Gunnarson and Catlin Blyth

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